REALTORS® Association of Edmonton

RESIDENTIAL TENANT BROKERAGE AGREEMENT (EXCLUSIVE)

FOR USE IN COMMON LAW BROKERAGES

THIS RESIDENTIAL TENANT BROKERAGE AGREEMENT (THE "AGREEMENT") IS AMONG THE TENANT AND THE TENANT'S BROKERAGE (THE "BROKERAGE")

AGREEMENT #:

THE TENANT:	**THE BROKERAGE:**
NAME:	BROKERAGE NAME:
NAME:	NAME:
ADDRESS:	ADDRESS:
Street address, city, province, postal code	*Street address, city, province, postal code*
PHONE:	PHONE:
EMAIL:	EMAIL:

BROKER, ASSOCIATE BROKER, OR ASSOCIATE AUTHORIZED TO REPRESENT THE BROKERAGE:

This Agreement is entered into by the Tenant and the Brokerage on the basis of the following facts:

(a) the Tenant wishes to retain the services of the Brokerage and benefit from agency representation in the lease of a property;
(b) the Brokerage may also represent landlords in whose property the Tenant may be interested;
(c) concurrent representation by the Brokerage of both the Tenant and such interested landlord prevents the Brokerage from discharging the agency and fiduciary obligations it owes to each of the Tenant and such landlord;
(d) concurrent representation is permitted by law only with the fully informed and voluntary consent of the Tenant;
(e) the Tenant has received and read the Consumer Relationships Guide (the "CRG") published by the REALTORS® Association of Edmonton ("RAE") and this Agreement, and has been given an opportunity to seek further information and independent advice concerning representation by a designated agent and the other relationships discussed therein; and
(f) the Brokerage is a member of RAE (the "Association").

In consideration of the Brokerage assisting the Tenant in leasing a(n) _____ (type of property) property in the market area(s) described as _____
_____
(the "Market Area"), the Tenant hereby gives the Brokerage the exclusive right to act as the agent for the Tenant on the following terms:

1. TERM

This Agreement will commence at _____.m. on the _____ day of _____, 20____ (the "Commencement Date") and will expire at _____.m. on the _____ day of _____, 20_____ (the "Expiry Date"). The term of this Agreement begins on the Commencement Date and ends on the occurrence of an event listed in Section 11.1 or Section 11.2 (the "Term").

2. BROKERAGE'S OBLIGATIONS

2.1 The Brokerage will:

(a) obey the lawful and reasonable instructions of the Tenant;
(b) exercise reasonable care and skill in the performance of this Agreement;
(c) use commercially reasonable efforts to seek out and advise the Tenant, in a timely manner, of properties available for lease in the Market Area(s) which may meet the Tenant's material requirements and generally promote the Tenant's interests;
(d) subject to Section 13, act only as the Tenant 's agent;
(e) subject to Section 13, be loyal to the Tenant and act in the Tenant's best interests at all times;
(f) make timely and full disclosure of all conflicts of interest that may arise among the Tenant's interests and those of the Brokerage or landlords;

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(g) at the earliest reasonable opportunity, advise any landlord in whose property the Tenant is interested that the Brokerage is the agent of the Tenant;
(h) not appoint another brokerage to act on behalf of the Tenant as subagent without the Tenant's prior written consent;
(i) assist the Tenant in negotiating favourable terms and conditions with a landlord;
(j) assist the Tenant in preparing and complying with a legally binding lease;
(k) use commercially reasonable efforts to discover relevant facts pertaining to any property for which the Tenant is considering making an offer;
(l) hold all monies received by the Brokerage in trust in accordance with the provisions of the Real Estate Act (the "REA");
(m) present, in a timely manner, all offers and counter-offers to and from the Tenant;
(n) disclose to the Tenant, in a timely manner, all relevant facts known to the Brokerage affecting a property or a transaction;
(o) keep the Tenant fully informed regarding the search for a property and any resulting transaction;
(p) advise the Tenant to obtain expert advice on matters of importance to the Tenant;
(q) subject to Section 10.1(b), disclose to the Tenant the existence and terms of any competing offers, known to the Brokerage, for a property in which the Tenant is interested;
(r) comply with all provisions of the REA and its regulations, the rules and bylaws of the Real Estate Council of Alberta, and the rules and regulations of the Association and the Canadian Real Estate Association ("CREA"); and
(s) provide a true copy of this Agreement to the Tenant after all parties have signed it.

2.2 The Tenant requests and the Brokerage agrees to provide, at the Tenant's expense, where applicable:
(a) to advertise for suitable properties; ☐ Yes ☐ No
(b) to assist the Tenant in arranging for inspections of a property; and ☐ Yes ☐ No
(c) the services listed below: _____
_____.

3. BROKERAGE'S FEE

3.1 The Tenant will pay the Brokerage as compensation $_____ plus GST (the "Fee"):
(a) if, during the Term:
(i) a legally enforceable lease from whatever source obtained is entered into among the Tenant and a landlord (other than a landlord or a property that has been specifically excluded in writing from this Agreement) and the lease is subsequently completed; or
(ii) the Tenant without legal justification fails to complete the lease; or
(b) if, up to and including _____ days after the expiration of this Agreement (the "Hold-Over Period"):
(i) a legally enforceable lease is entered into among the Tenant and a landlord (other than a landlord of a property that has been specifically excluded in writing from this Agreement) whose property was introduced to the Tenant during the Term by whatever means or person, and whether or not the Brokerage is the effective cause of such offer to lease and the lease is subsequently completed; or
(ii) the Tenant without legal justification fails to complete the lease.
(c) This Section 3.1 will not apply where the Tenant has signed another Tenant brokerage agreement after the expiration of this Agreement and Fee is payable to another brokerage according to the terms of that other Tenant brokerage agreement as a result of a lease.

3.2 The Tenant authorizes the Brokerage to request payment of the Fee specified in Section 3.1 or part thereof from:
(a) the Brokerage representing the landlord; and ☐ Yes ☐ No _____ Tenant Initials
(b) the landlord where the landlord has not listed the property with a brokerage. ☐ Yes ☐ No _____ Tenant Initials

3.3 Where the amount so received by the Brokerage under Section 3.2 plus the Payment Security (defined below):
(a) exceeds the Fee and GST specified in Section 3.1, then the excess will immediately be paid by the Brokerage to the Tenant; or
(b) is less than the Fee and GST specified in Section 3.1, then the shortfall will immediately be paid by the Tenant to the Brokerage.

3.4 The Tenant will pay the Fee to the Brokerage no later than the second business day after the lease is completed unless the Tenant and the Brokerage otherwise agree in writing. A lease is completed when the lease is executed or possession is granted to the Tenant, whichever occurs first. Any holdbacks or conditions accepted by the landlord or the landlord's lawyer will not delay the payment of the Fee to the Brokerage.

3.5 If during the Term, the Tenant should withdraw from the market, the Tenant will reimburse the Brokerage for all reasonable expenses incurred in the performance of this Agreement prior to the date on which the Tenant notifies the Brokerage in writing of the Tenant's decision, provided that such reimbursement will not prejudice any other claim to compensation to which the Brokerage may become entitled under Section 3 of this Agreement.

3.6 Subject to Section 3.2, the Brokerage agrees not to accept any other compensation, whatever its form (including a finder's fee, referral fee or gift) and from whatever source (including the landlord, another brokerage, or a contractor), directly or indirectly related to its agency under this Agreement unless, before accepting such fee, the Brokerage has:
(a) fully disclosed in writing to the Tenant all relevant facts relating to the offer of compensation including the maximum amount to be received; and
(b) obtained the Tenant's written consent to the Brokerage receiving such compensation.

4. SECURITY FOR THE BROKERAGE FEE

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4.1 The Tenant will pay the Brokerage on the signing of this Agreement, the sum of $_____ (the "Payment Security") which will be applied towards any Fee payable by the Tenant to the Brokerage under Section 3.1 of this Agreement.

4.2 The Payment Security shall be refunded to the Tenant no later than _____ days after the expiry date of this Agreement if the Fee is not earned according to Section 3.1. If the Tenant has signed a contract with a new brokerage as per Section 3.1(c), these funds shall be refunded forthwith to the Tenant.

5. DUTIES OF THE TENANT

5.1 The Tenant agrees to provide the Brokerage with sufficient personal and financial information to enable the Brokerage to determine the Tenant's ability to lease a property as specified in this Agreement.

5.2 The Tenant will:

(a) make commercially reasonable efforts to communicate and cooperate with the Brokerage in a timely manner;

(b) provide the Brokerage with all information necessary to identify properties in the Market Area(s) in which the Tenant may be interested; and

(c) immediately advise the Brokerage of any material change in information provided to the Brokerage.

5.3 The Tenant will immediately advise the Brokerage during the Term and during the Hold-Over Period of all inquiries and offers to lease received by the Tenant from interested landlords, or their representatives, and will deliver all such offers to the Brokerage.

6. TENANT'S WARRANTY

The Tenant warrants that the Tenant:

(a) is not currently represented by any other brokerage and will not enter into another Tenant Brokerage Agreement during the Term with respect to the same Market Area(s); and

(b) has disclosed to the Brokerage all of the material requirements that the Tenant is seeking in a property.

7. TENANT'S CONFIDENTIAL INFORMATION WILL BE PROTECTED

The Brokerage undertakes it will:

(a) not use confidential information received from the Tenant or obtained as a result of providing services under this Agreement for its own gain or the gain of its employees or to the prejudice of the Tenant's interests; and

(b) not disclose any confidential information concerning the Tenant to any other brokerage or other person unless authorized by the Tenant or required by law.

8. USE AND DISTRIBUTION OF TENANT'S INFORMATION

8.1 The Tenant understands and consents to the collection, use and disclosure of personal information (as defined in the Personal Information Protection Act ("PIPA")) by the Brokerage and the Association for the purpose of this Agreement and such other use as is consistent with the lease or prospective lease of a property, including, but not limited to, retaining and disclosing any listing and lease information, including price, which may be used by the Brokerage for any purpose relating to their business including conducting comparative analysis and disclosing such information to other persons such as appraisers and other brokerages.

8.2 If the Tenant has any questions about the collection of personal information, the Tenant can contact the privacy officer for the Brokerage using the Brokerage's contact information on page 1.

8.3 The Tenant further acknowledges that the Brokerage and the Association may:

(a) distribute the information to any persons authorized to use such service which may include other brokers, government departments, appraisers, municipal organizations, and others;

(b) compile, retain and publish any statistics including historical listing service data which may be used by the Brokerage and Association members to conduct comparative market analyses; and

(c) make such other use of the information as the Brokerage and the Association deem appropriate in connection with the listing, marketing, and leasing of real estate.

8.4 The Tenant acknowledges that:

(a) the information provided by a landlord to the MLS® System is not confidential information as defined in PIPA;

(b) once the information is entered into the MLS® System it will endure and cannot be removed; and

(c) the Tenant has no right to restrict the use of information entered into the MLS® System in any way.

Note: The trademarks MLS®, Multiple Listing Service® and the associated logos are owned by the CREA and identify the quality of services provided by real estate professionals who are members of CREA.

9. INDEMNIFICATION

The Tenant will save, hold harmless and indemnify the Brokerage and any of its respective officers, directors and employees (the "Indemnified Parties") for any and all alleged or actual claims, losses, costs, damages, expenses, penalties, fines, legal fees on a solicitor client cost basis, or any other amounts for which the Indemnified Parties may incur or be found liable to pay and which are attributable or arise out of the Indemnified Parties reasonable and good faith reliance on representations made, or information provided by the Tenant.

10. ADDITIONAL TERMS

10.1 The Tenant agrees that:

(a) the Brokerage may represent other tenants and, subject to Section 13, landlords;

(b) the Brokerage cannot disclose to the Tenant confidential information obtained through any other agency relationship to which the Brokerage is or has been a party; and

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(c) the Brokerage will not be obligated to seek additional properties of interest to the Tenant once the Tenant is a party to an unconditional lease agreement.

10.2 This Agreement:

(a) includes, if signed or initialed by the Tenant and attached to this Agreement, the following documents, which shall form part of this Agreement: _____
_____
_____;

(b) will constitute the entire agreement among the Tenant and Brokerage and there are no representations, warranties, collateral agreements, or conditions which affect this Agreement other than as expressed herein;

(c) is for the benefit of and will be binding upon the heirs, administrators, executors, successors and assigns of the parties; and

(d) will be governed by the laws of the Province of Alberta and the parties will submit to the jurisdiction of the Courts of the Province of Alberta for the resolution of any disputes that may arise out of this Agreement.

10.3 If any provision of this Agreement is found to be invalid, void, illegal, or not enforceable, such provision shall be considered separate and severable from this Agreement and the remaining provisions shall remain in force and be binding upon the parties.

10.4 The headings in this Agreement are inserted for convenience of reference only and shall not affect the construction of this Agreement.

10.5 No amendment to the terms of this Agreement shall be effective unless it is in writing and signed by the Tenant and the Brokerage.

10.6 If there is conflict or discrepancy between any provision added to this Agreement and any provision in the standard portion hereof, the added provision will supersede the standard provision to the extent of such conflict or discrepancy.

11. ENDING THIS AGREEMENT

11.1 Without prejudice to the acquired rights of the Tenant or the Brokerage, this Agreement will end upon:

(a) a completed lease of a property;

(b) the Expiry Date or an earlier date than the Expiry Date if mutually agreed to by the Tenant and the Brokerage in writing;

(c) the suspension or cancellation of the Brokerage's license to trade in real estate;

(d) the Brokerage ceasing to be a member of the Association; or

(e) the bankruptcy or insolvency of the Brokerage or if it is in receivership.

11.2 Where one party to this Agreement has materially breached this Agreement, the other party may, at its option, end this Agreement by notice in writing to the party in breach.

11.3 When this Agreement ends, the Brokerage will immediately:

(a) cease efforts to seek out and advise the Tenant of properties for lease in the Market Area(s); and

(b) return documents and other materials, if any, provided by the Tenant.

11.4 Ending this Agreement for whatever reason does not relieve the Brokerage of its duty to account for all monies received by the Brokerage and confidentiality to the Tenant.

12. DEFINITIONS

For the purposes of this Agreement:

(a) "business day" means every day except Saturday, Sunday, and statutory holidays;

(b) "concurrent representation" means a situation in which a brokerage or an industry member represents two or more parties to a trade whose interests are seen to be in conflict;

(c) "landlord" means a person disposing or attempting to dispose of an interest in real estate by lease;

(d) "lease" includes an exchange, option, lease, or other acquisition/disposition of an interest in real estate;

(e) "lease is complete" when the lease is executed or possession is granted to the tenant, whichever occurs first; and

(f) "tenant" means a person acquiring or attempting to acquire an interest in real estate by lease.

13. CHANGE IN REPRESENTATIVE CAPACITY OF THE BROKERAGE

13.1 If the Brokerage is the agent of a landlord, and the Tenant wishes to view that landlord's property, the Brokerage will:

(a) disclose this fact to both the Tenant and the landlord; and

(b) unless instructed otherwise by the landlord, facilitate the viewing of the property by the Tenant and make available the marketing information that is available to all potential Tenants; however, the mere viewing of the property will not mean the Tenant is interested in the property for the purposes of Section 13.2 below.

13.2 If the Brokerage is also the agent of a landlord in whose property the Tenant is interested, the Brokerage will:

(a) immediately advise the Tenant and the landlord of all relevant facts and of the implications of concurrent representation;

(b) give the Tenant and the landlord an opportunity to seek independent advice;

(c) obtain the written informed consent of the Tenant to the Brokerage continuing to provide services to the landlord and the Tenant in a transaction brokerage relationship on the terms and conditions specified in the Transaction Brokerage Agreement (the "TBA") and in the CRG prior to writing the offer; and

(d) obtain the written informed consent of the landlord to the Brokerage continuing to provide services to the landlord and the Tenant in a transaction brokerage relationship on the terms and conditions specified in the TBA and in the CRG prior to presenting the Tenant's offer to the landlord.

13.3 Should the Brokerage decide not to enter into a TBA or should either the Tenant or landlord refuse to consent to transaction

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brokerage, unless otherwise agreed in writing by the parties, the Brokerage will continue to represent the party, be it the Tenant or the landlord, with whom it first entered into an agency relationship and offer to treat the other party as a customer, or to refer the other party to another brokerage.

14. NOTICES

Notices shall be delivered upon the Tenant or Brokerage, as the case may be, at the addresses listed on the first page of this Agreement, unless otherwise specified in writing. Any notice may be served personally, or by registered or certified mail postage prepaid, or by electronic means, including email. If mailed from a post office in Edmonton, such notice shall be deemed to have been received by the addressee three (3) post office business days after the date of mailing.

15. TENANT'S ACKNOWLEDGMENT

The Tenant, having received and read both this Agreement and the CRG, and having been given the opportunity to request further information concerning this Agreement and the representation relationships described in the CRG, acknowledges this Agreement accurately sets out the terms agreed to by the Tenant and the Brokerage.

16. SIGNATURES

This Agreement may be signed by the parties in counterparts and delivered originally or electronically. The signed and delivered electronic copy is deemed to be an original. Signing may be done by wet ink, insertion by the signatory of an image of a wet ink signature, or by means of an electronic signature.

Dated at _____.m. on _____, 20 _____.

_____	_____
Tenant's Signature	Witness' Signature
_____	_____
Tenant's Printed Name	Witness' Printed Name
_____	_____
Tenant's Signature	Witness' Signature
_____	_____
Tenant's Printed Name	Witness' Printed Name
_____	_____
Signature of Broker, Associate Broker, or Associate authorized To sign on behalf of the Brokerage	Brokerage Representative's Printed Name

Tenant initial here to show you have received a copy of this Agreement: _____ Date: _____

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